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COPY FOR YOUR INFORMATION

MONTANA TWENTIETH JUDICIAL DISTRICT COURT
SANDERS COUNTY

IN THE MATTER OF THE ESTATE OF GERALD GENE MILLER, *Deceased.*	Probate No.: DP-45-2025-36 Dept. No.: 1 **NOTICE AND INFORMATION TO HEIRS AND DEVISEES**

TO: The heirs and devisees of the above-entitled estate:

1. The Decedent, Gerald Gene Miller, died on or about December 9, 2024.

2. Pursuant to Montana law, this Notice is being sent to:

   a. "Heirs" – who are persons under Montana law who have a certain legal relationship to the decedent, and/or:

   b. "Devisees" – who are persons who are named as a recipient of the Estate in accordance with the Last Will & Testament of the Decedent, which is attached, and the Gerald & Shirley Miller Revocable Trust, Dated the 15th day of January 2021, which is also attached.

3. Therefore, persons named in the Last Will to receive distributions of the Estate are called "Devisees" of the Last Will. Persons who are related to the Deceased and who would receive the Net Estate if no Last Will exists, or if the attached Last Will was declared invalid, are called "Heirs." Pursuant to Montana law, all known Heirs and Devisees of the Deceased received this "Notice and Information to Heirs and Devisees."

4. The taker under the Last Will is the Gerald & Shirley Miller Revocable Trust, Dated the 15th day of January 2021.

5. The main purpose of the Estate proceedings is because Gerald Gene Miller owned CD Accounts with without beneficiary designations. Thus, this proceeding is being filed to transfer such accounts to the Gerald & Shirley Miller Revocable Trust.

6. Jeffrey W. Miller, whose address is 61 Weber Gulch Rd., Thompson Falls, MT 59873 was appointed as Personal Representative of said Estate on July 31, 2025, without bond.

7. Documents, papers and information relating to the Estate are on file in the District Court of the Twentieth Judicial District in and for the County of Sanders, State of Montana, at Thompson Falls, Montana as Probate No. DP-45-2025-36, with Honorable Molly Owens presiding.

8. This Estate is being administered as an "Informal Probate" by the Personal Representative under the Uniform Probate Code of Montana without direct supervision by the Court. Recipients are entitled to information regarding administration from the Personal Representative and may petition the Court in any manner relating to the estate, including distribution of assets and expenses of administration.

9. In accordance with Montana law, the Personal Representative is required to publish Notice to Creditors in a newspaper of general circulation in Sanders County, Montana. The Notice to Creditors will be published once a week for 3 consecutive weeks, and creditors will have four months from the first publication to submit claims. While awaiting the end of the four (4) month period, the Personal Representative will work to inventory and appraise all assets of the Decedent and his Estate. It is therefore not expected for the time for creditors to submit claims to expire until winter of 2025.

10. After the time period for creditors to submit claims has expired, the Personal Representative must resolve all claims against the estate, if any, and continue administration, inventory, appraisal and accounting of the Estate until it appears all assets are accounted for, and the Estate is in a position to be distributed to the Devisees. The exact timeline of each probate is never known as no probate is ever the same, however, heirs of an intestate estate should expect that full administration usually takes between 6 to 12 months to complete, with the timeline depending on the nature and location of the assets, currently unknown assets, market conditions if sales are warranted, creditor issues, final taxes and governmental filings, and possible disputes. In fact, in order to assist with complete administration, Montana law requires a probate to be open for at least 6 months from the date of the Personal Representative's appointment before the probate proceeding can be fully completed.

11. Persons with knowledge of assets of the Decedent should provide, as soon as possible, as much detailed information about such assets to the Personal Representative as possible.

12. Questions and concerns regarding the administration of the Estate can be made to the Personal Representative or the Court.

13. This notice is being sent to persons who have or may have some interest in the estate being administered.

I declare under penalty of perjury and under the laws of the State of Montana that the foregoing is true and correct.

DATED the 23rd day of July 2025.

ESTATE OF GERALD GENE MILLER

Jeffrey W. Miller

Jeffrey W. Miller, Personal Representative

WORDEN THANE P.C.
Attorneys for Personal Representative

William E. McCarthy

CERTIFICATE OF SERVICE

I, the undersigned, hereby certify that on August 1, 2025, I served a copy of the foregoing "Notice and Information to Heirs and Devisees" by U.S. first class mail, on:

Jane K. Cortez
10043 SE 32nd Ave.
Milwaukie, OR 97222

Jean D. Lutnes
1736 Dickerson Boulevard # 122
Monroe, NC 28110

Mary E. Taylor
15 Wilkes Creek Rd
Thompson Falls, MT 59873

Amy L. McCloskey
165 Berkeley Trail
Butte, MT 59701

Jeffrey W. Miller, individually,
and as Successor Trustee of the
Gerald & Shirley Miller Revocable Trust,
Dated January 1, 2021
61 Weber Gulch Rd
Thompson Falls, MT 59873

FILED
07/31/2025
Cynthia Neste
CLERK
Sanders County District Court
STATE OF MONTANA
By: Lacy Wieckowski
DP-45-2025-0000036-IT
Owen, Molly
2.00

Last Will and Testament

OF

GERALD G. MILLER

I, **Gerald G. Miller**, being of lawful age and of sound mind and memory, do hereby declare this to be my Last Will and Testament and hereby revoke any and all other wills and codicils heretofore made by me.

FIRST, I hereby declare that I am a resident of the State of Montana; that I am married to **Shirley J. Miller,** that I have five (5) adult children, namely to-wit: **Jane K. Cortez, Jean D. Lutnes, Mary E. Taylor, Jeffery W. Miller and Amy L. McCloskey.**

SECOND, I direct that all of my just debts including the expenses of my last illness, if any, funeral expenses and expenses of administration of my estate be paid out of the assets of my estate as soon after my death as possible.

THIRD, I direct that I be cremated and that my ashes be spread on our homestead property located near Thompson Falls, Sanders County, MT.

FOURTH, I give, devise and bequeath all the rest, residue and remainder of my property, real and personal, wherever situate, and whether acquired before or after the execution of this Will to the Garold & Shirley Miller Revocable Trust, dated the 15th day of January, 2021, to be administered under the terms thereof.

FIFTH, I hereby nominate and appoint **Jeffery W. Miller,** as the Personal Representative of my estate and in case he should die, resign, be disqualified or unwilling or unable to act as such, then I name **Mary E. Taylore,** as Alternate Personal Representative. No person named as Personal Representative of this Will shall be required to give bond as such, but if bond is nevertheless required by any Court, the cost thereof shall be paid out of my estate.

Gerald G. Miller
Gerald G. Miller

SIXTH, I hereby give my Personal Representative full power and authority provided for by the Constitution and statutes of the State of Montana.

SEVENTH, ,I hereby direct my Personal Representative to use the services of my attorney, **Clinton J. Fischer** of Polson, Montana, in connection with the probate of my estate.

I, **Gerald G. Miller**, the Testator, sign my name to this instrument this 19th day of January, 2021, and being first duly sworn, do hereby declare to the undersigned authority that I sign and execute this instrument as my Last Will consisting of three (3) typewritten pages, and that I sign it willingly, and that I execute it as my free and voluntary act for the purposes therein expressed and that I am 18 years of age or older, of sound mind, and under no constraint or undue influence.

Gerald G. Miller
Gerald G. Miller

We, **Clinton J. Fischer** and CHRISTINE K FISCHER, the witnesses, sign our names to this instrument, being first duly sworn, and do hereby declare to the undersigned authority that the Testator signs and executes this instrument as his Last Will and that he signs it willingly, and that each of us, in the presence and hearing of the Testator, sign this Will as witness to the Testator's signing and that to the best of our knowledge the Testator is 18 years of age or older, of sound mind, and under no constraint or undue influence.

_____ Residing at Polson, MT

Christine K Fischer Residing at Polson, MT

STATE OF MONTANA)

Gerald G. Miller
Gerald G. Miller

: ss.
County of Lake)

SUBSCRIBED, SWORN TO, and acknowledged before me by **Gerald G. Miller**, the Testator, and subscribed and sworn to before me by **Clinton J. Fischer** and CHRISTINE K FISCHER, the witnesses, this 15th day of January, 2021.

Debbie D Benson
Signature of Notary Public
(Seal)

DEBBIE D. BENSON NOTARIAL SEAL STATE OF MONTANA

DEBBIE D. BENSON
NOTARY PUBLIC for the
STATE OF MONTANA
Residing at Ronan, Montana
My Commission Expires
January 31, 2024

Gerald G. Miller
Gerald G. Miller